

20SMCV02019 20SMCV02019

County: los-angeles

Division: Civil Law and Motion

Department: I

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The court was hoping that essentially the parties would have gone their separate ways by now, but that did not occur. The court will inquire. The court has little or no hope that there will be the clean break envisioned by the court even given that defendants' unit is to be sold. But the court is not convinced that an injunction is really all that helpful. The court is disinclined to start issuing an injunction that would apply to communications with the HOA while defendants are still the beneficiaries of the trust that owns the unit, and the likely harm beyond that will be for statements made under a pseudonym. As to the pseudonym, other than having plaintiff speak through Armstrong, there has been no convincing proof of it, and the statements by Armstrong related to the unit. Given that plaintiff has failed to prove the pseudonym allegation other than Armstrong, the court is disinclined to issue a prior restraint on speech. The court is also concerned that the proposed liquidated damages provision has more to do with the cost of proof and litigation than any harm that the comment might do, and really seems to be punitive. Therefore, the request for forward-looking injunctive relief is DENIED. Of course, that does not bar plaintiff from bringing a new defamation action if plaintiff believes that defendants have defamed him in the future.

The court will therefore turn to the proposed Statement of Decision. The court has seen no objection thereto, but the time to object might not have run. The court notes that it is leaving California on Tuesday (and the court lacks the power to issue orders when it is not physically within the state), so the Statement of Decision time is extended to October 31, 2026 or whenever it would otherwise run, whichever is later.